

SOLVED PRACTICE WORKBOOK

Fundamental Rights - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Fundamental Rights - Solved Practice Workbook

Source and status control: Constitution Part III; canonical Basic, Advanced and complete owners; audited PYQ ledgers; local OCR polity books; official judgments and legislation checked through 7 September 2026. Exactly 32 original MCQs appear before 21 audited PYQs. Only the held final local-official 2024 Q76 answer letter is printed; fourteen other objective letters are withheld.

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCDABCDABCDABCDABCDABCDABCDABCD. Every option has a unique substantive explanation and every question ends with a unique question-specific Examiner trap.

BASIC MCQS / REMEDIATION

Q1. With reference to the architecture of Part III, which statement is correct?

A. Articles 12-13 identify bound power and inconsistent law, Article 32 is itself a Fundamental Right, and Articles 31A-35 are bounded control provisions. B. Every Article between 12 and 35 is separately counted among the six present Fundamental Rights. C. Article 226 belongs to Part III and is itself a Fundamental Right. D. Article 300A remains one of the six rights because it protects property.

Answer: A.

- **A:** Correct: Part III combines gateway provisions, six present rights, a guaranteed Article 32 remedy and defined saving or special-control clauses.
- **B:** Incorrect: the six-right catalogue does not count Articles 12-13 or 31A-35 as additional substantive right families.
- **C:** Incorrect: Article 226 is a High Court power in Part VI; its breadth complements Article 32 but it is not itself a Part III right.
- **D:** Incorrect: the Forty-fourth Amendment moved property protection to Article 300A in Part XII, outside the Fundamental-Rights catalogue.

Examiner trap: The architecture question tests membership in Part III separately from membership in the six-right catalogue.

Q2. Which statement most precisely separates beneficiary language from horizontal application?

A. Every right available to a person applies directly against every private actor. B. Article 15 is citizen-specific; Article 15(2) directly reaches specified private exclusion, while Article 15(5) authorises law reaching covered private educational institutions. C. Article 17 is citizen-only because caste is a citizenship status. D. Article 19 protects all persons but is enforceable only against public corporations.

Answer: B.

- **A:** Incorrect: person-based beneficiary wording does not by itself convert every private dispute into a direct constitutional claim.
- **B:** Correct: the Article 15 clauses show why holder, direct prohibition and legislation-mediated private reach must be analysed separately.
- **C:** Incorrect: Article 17 is framed as an absolute abolition and directly reaches caste-based untouchability regardless of the actor's private status.
- **D:** Incorrect: Article 19 expressly protects citizens and primarily restrains State action; the option reverses both propositions.

Examiner trap: A right's holder and its duty-bearer are two axes; collapsing them produces the closest distractor.

Q3. A government-financed society performs a function transferred from a department and is under pervasive administrative control. What is the best approach?

A. Its registration as a society conclusively excludes Article 12. B. Only ownership of every share can make an entity State. C. Its cumulative financial, functional and administrative relationship may make it an instrumentality of the State. D. It automatically becomes Parliament for Part III purposes.

Answer: C.

- **A:** Incorrect: Ajay Hasia rejects form as conclusive; a society can satisfy the instrumentality test.
- **B:** Incorrect: total ownership is neither constitutionally required nor a substitute for the cumulative domination inquiry.
- **C:** Correct: Pradeep Kumar Biswas focuses on pervasive financial, functional and administrative government domination taken together.
- **D:** Incorrect: Article 12 status makes the body an authority bound by rights; it does not transform its institutional identity into Parliament.

Examiner trap: Corporate or society form is evidence, not the constitutional answer.

Q4. Which statement about Article 13 is constitutionally accurate?

A. Custom is excluded because only enacted measures are law. B. Every invalid provision necessarily destroys the entire enactment. C. A constitutional amendment is reviewed exactly like an ordinary notification under Article 13(2). D. Law includes custom or usage with the force of law, while constitutional amendments follow Article 368 and basic-structure review.

Answer: D.

- **A:** Incorrect: Article 13(3)(a) expressly includes custom or usage having in India the force of law.
- **B:** Incorrect: the phrase 'to the extent' supports severability where the valid remainder is workable and consistent with legislative intent.
- **C:** Incorrect: Article 13(4) and Kesavananda Bharati place amendment review on the Article 368/basic-structure route.
- **D:** Correct: the option accurately separates Article 13's broad ordinary-law definition from the constitutional-amendment control path.

Examiner trap: The question turns on two different meanings of law: Article 13 ordinary law and Article 368 constitutional amendment.

Q5. A pre-Constitution law conflicts with a Fundamental Right, but the offending shadow is later validly removed. Which combination is correct?

A. Eclipse may permit revival; severability may preserve a separable valid remainder; waiver cannot validate unconstitutional State action. B. Repugnancy permits revival; colourable legislation preserves the remainder; waiver is always available. C. Eclipse automatically applies to every post-Constitution law and permanently erases the pre-Constitution enactment. D. Severability requires striking the whole Act whenever one clause is invalid.

Answer: A.

- **A:** Correct: Bhikaji explains eclipse, severability follows 'to the extent', and Basheshar Nath treats rights as structural limits not disposable bargains.
- **B:** Incorrect: repugnancy and colourable legislation concern different constitutional inquiries, and waiver does not cure unconstitutional public power.
- **C:** Incorrect: classic eclipse concerns pre-Constitution law and describes dormancy, not permanent erasure.
- **D:** Incorrect: severability asks whether the valid residue can operate and reflects legislative intent, so whole-Act invalidation is not automatic.

Examiner trap: The doctrines are not interchangeable labels; time of enactment and legal effect identify the correct one.

Q6. Which sequence correctly states the amendment-Fundamental Rights relationship?

A. Golaknath created the basic-structure doctrine and Kesavananda abolished amendment review. B. Golaknath restricted FR-amending power prospectively; the Twenty-fourth Amendment responded; Kesavananda allowed amendment subject to basic structure. C. Shankari Prasad held that every constitutional amendment is ordinary law under Article 13. D. Minerva Mills upheld Parliament's unlimited power to give every Directive Principle priority over every Fundamental Right.

Answer: B.

- **A:** Incorrect: Golaknath used prospective overruling but basic structure emerged in Kesavananda Bharati.
- **B:** Correct: the sequence preserves the temporary Golaknath rule, Parliament's textual response and the enduring basic-structure limitation.
- **C:** Incorrect: Shankari Prasad held that a constitutional amendment was not ordinary law for Article 13 purposes.
- **D:** Incorrect: Minerva Mills invalidated unlimited amending claims and defended limited power plus harmony between Parts III and IV.

Examiner trap: Case chronology is tested together with the proposition each case actually supplied.

Q7. A classification uses an intelligible criterion but the criterion has no relation to the law's objective. Under Article 14, it

A. survives because intelligibility alone is sufficient. B. can be reviewed only if a citizen invokes Article 19. C. fails the rational-nexus limb, independently of any further arbitrariness inquiry. D. becomes valid if the legislature records a unanimous vote.

Answer: C.

- **A:** Incorrect: reasonable classification requires both intelligible differentia and a rational relation to the objective.
- **B:** Incorrect: Article 14 protects persons and supplies its own classification and anti-arbitrariness review.
- **C:** Correct: the absent nexus defeats the classification even before a broader capricious-power analysis is undertaken.
- **D:** Incorrect: legislative support does not cure a constitutionally irrational relationship between class and statutory purpose.

Examiner trap: The two limbs are cumulative, not alternative.

Q8. Which Article 15 proposition is correct?

A. Article 15(2) regulates only State-owned shops and wells. B. Article 15(5) abolishes Article 30 minority-institution protection. C. Article 15(4) was inserted by the 103rd Amendment to create EWS reservation. D. Article 15(2) directly bars specified access discrimination, while Article 15(5) enables admissions law for covered aided and unaided private institutions except Article 30(1) minority institutions.

Answer: D.

- **A:** Incorrect: Article 15(2) is a classic horizontal guarantee covering specified public-facing facilities irrespective of private ownership.
- **B:** Incorrect: the text of Article 15(5) expressly excludes minority educational institutions protected by Article 30(1).
- **C:** Incorrect: Article 15(4) followed Champakam and the First Amendment; Article 15(6) is the 103rd Amendment's EWS clause.
- **D:** Correct: this formulation states both direct horizontal reach and the distinct legislation-mediated reach of Article 15(5).

Examiner trap: Do not treat clauses (2) and (5) as identical mechanisms merely because both can affect private institutions.

Q9. Which statement about Article 16 is most accurate?

A. Article 16(4) is an enabling power for backward classes inadequately represented in State services, not a guaranteed individual quota. B. Article 16(3) lets each State executive impose any residence requirement it prefers. C. Article 16(4A) applies to every backward class in all promotions without constitutional conditions. D. Article 16(4B) abolishes Article 335's efficiency consideration.

Answer: A.

- **A:** Correct: the clause permits, but does not compel, representation-linked reservation in appointments or posts.
- **B:** Incorrect: Article 16(3) assigns the residence-prescription power to Parliament, not an unrestricted State executive.
- **C:** Incorrect: Article 16(4A) concerns SC/ST promotion reservation and remains subject to constitutional data and efficiency controls.
- **D:** Incorrect: backlog treatment does not erase Article 335 or the wider judicial-review framework.

Examiner trap: Enabling power is not the same as an enforceable claim to reservation in every cadre.

Q10. What is the exam-safe statement of the reservation ceiling after Indra Sawhney?

A. Fifty per cent is an exceptionless constitutional number that no later text or extraordinary circumstance can qualify. B. It is the ordinary doctrinal ceiling, subject to carefully justified exceptional circumstances and text-specific constitutional developments. C. It applies only to EWS reservation and never to social and educational backwardness. D. It was deleted from doctrine by Article 335.

Answer: B.

- **A:** Incorrect: the Court described an ordinary rule and recognised exceptional situations; later constitutional provisions also require their own analysis.
- **B:** Correct: this avoids both casual ceiling evasion and the inaccurate claim of a universal mathematical command.
- **C:** Incorrect: Indra Sawhney concerned backward-class reservation, while EWS arose later through the 103rd Amendment.
- **D:** Incorrect: Article 335 addresses service claims and administrative efficiency, not deletion of the ceiling doctrine.

Examiner trap: The distractor turns a strong ordinary rule into an absolute textual prohibition.

Q11. Which statement correctly states the EWS position?

A. The 103rd Amendment created only Article 16(4A). B. Janhit Abhiyan unanimously invalidated economic reservation. C. Articles 15(6) and 16(6) authorise EWS measures, and a 3:2 majority in Janhit Abhiyan upheld the 103rd Amendment. D. EWS reservation constitutionally includes classes already covered by Article 15(4) as EWS for the same benefit.

Answer: C.

- **A:** Incorrect: Article 16(4A) came through the 77th Amendment and concerns SC/ST promotion reservation.
- **B:** Incorrect: the decision was a divided 3:2 judgment upholding, not invalidating, the 103rd Amendment.
- **C:** Correct: the option gives the exact enabling clauses and accurately qualifies the majority status.
- **D:** Incorrect: the constitutional EWS clauses exclude the classes mentioned in Articles 15(4) and 16(4) from that category.

Examiner trap: Majority and unanimity are not interchangeable descriptions of Janhit Abhiyan.

Q12. After State of Punjab v. Davinder Singh (2024), which proposition is correct?

A. States may rewrite the Presidential Scheduled Castes list. B. Every State is constitutionally required to create a sub-quota. C. One sub-class may receive the entire benefit without evidence or review. D. Evidence-based sub-classification within Scheduled Castes is permissible for distributing reservation benefits, without altering the Article 341 list.

Answer: D.

- **A:** Incorrect: inclusion in or exclusion from the Article 341 list remains a constitutionally distinct parliamentary process.
- **B:** Incorrect: the judgment permits sub-classification; it does not impose a nationwide mandatory policy.
- **C:** Incorrect: evidence, non-arbitrariness and avoidance of total exclusion remain constitutional controls.
- **D:** Correct: Davinder Singh separates identification of Scheduled Castes from evidence-based distribution of benefits within the listed class.

Examiner trap: Permission to sub-classify is neither a power to amend the list nor a command to create a sub-quota.

Q13. Which combination correctly describes Articles 17 and 18?

A. Article 17 directly reaches private caste-based untouchability; Article 18 permits military and academic distinctions and properly used national awards. B. Article 17 protects only citizens against State action; Article 18 abolishes academic degrees. C. Article 17 belongs to the exploitation chapter; Article 18 applies only to hereditary citizens. D. National awards are always unconstitutional titles even when not used as prefixes or suffixes.

Answer: A.

- **A:** Correct: the pair combines horizontal abolition of caste untouchability with the text and Balaji Raghavan limits on titles.
- **B:** Incorrect: Article 17 is not citizen-only or purely vertical, and Article 18 expressly preserves academic distinctions.
- **C:** Incorrect: Article 17 sits in the equality code, while citizenship does not determine Article 18's whole field.
- **D:** Incorrect: Balaji Raghavan upheld national awards while prohibiting their title-like use before or after a name.

Examiner trap: The category label 'Right against Exploitation' is designed to lure candidates away from Article 17's actual placement.

Q14. Which list contains all six current freedoms under Article 19(1)?

A. Speech, assembly, association, property, movement and religion B. Speech, peaceful assembly, association, movement, residence and profession/trade/business C. Speech, privacy, education, movement, residence and constitutional remedies D. Assembly, association, equality, property, profession and conscience

Answer: B.

- **A:** Incorrect: property was removed from Article 19(1), and religion is principally protected by Articles 25-28.
- **B:** Correct: the list tracks clauses (a), (b), (c), (d), (e) and (g) after deletion of former clause (f).
- **C:** Incorrect: privacy, education and constitutional remedies arise from other Articles rather than the six-freedom list.
- **D:** Incorrect: equality, property and conscience are separate constitutional guarantees, not Article 19(1) entries.

Examiner trap: Former property freedom and modern derived rights are the two most plausible additions to the six-item list.

Q15. Which freedom-restriction pairing is constitutionally correct?

A. Movement - friendly relations with foreign States B. Profession - contempt of court C. Association - sovereignty and integrity, public order and morality D. Speech - protection of the interests of Scheduled Tribes

Answer: C.

- **A:** Incorrect: friendly relations is an Article 19(2) speech ground, not an Article 19(5) movement ground.
- **B:** Incorrect: contempt restricts speech; Article 19(6) uses general public interest, qualifications and State monopoly.
- **C:** Correct: Article 19(4) contains exactly those three grounds for association.
- **D:** Incorrect: Scheduled Tribe protection belongs to movement and residence under Article 19(5).

Examiner trap: Restriction grounds cannot be borrowed across clauses even when the public objective sounds plausible.

Q16. Which statement correctly combines modern speech doctrine?

A. Anuradha Bhasin created an unlimited standalone Fundamental Right to internet access and invalidated every shutdown. B. Shreya Singhal struck down section 69A but upheld section 66A. C. BNS section 152 is textually identical to IPC section 124A and has been finally upheld by the Supreme Court. D. Shreya Singhal invalidated section 66A but retained safeguarded blocking; Anuradha Bhasin protected speech/trade through the internet as a medium; section 152 has distinct ingredients and no located final merits ruling through 7 September 2026.

Answer: D.

- **A:** Incorrect: the Court protected existing freedoms exercised through the medium and required proportionate, published and reviewable orders.
- **B:** Incorrect: the holding is reversed; section 66A fell for vagueness and overbreadth, while section 69A survived with safeguards.
- **C:** Incorrect: the successor text differs and the located official record shows notice on vires, not a final merits judgment.
- **D:** Correct: the option preserves each settled holding and separately date-bounds the pending section 152 challenge.

Examiner trap: A current-status option is wrong if it converts notice, medium or safeguard into a broader final holding.

Q17. Which statement about Article 20 is correct?

A. It bars retrospective creation or enhancement of criminal liability, repeated prosecution and punishment for the same offence, and compelled testimonial self-incrimination. B. It protects only citizens and may be included in an Article 359 order. C. Article 20(2) bars every departmental proceeding following a criminal case. D. Article 20(3) prevents collection of all fingerprints, handwriting and bodily samples.

Answer: A.

- **A:** Correct: the option states the three distinct person-protective criminal shields in clauses (1), (2) and (3).
- **B:** Incorrect: Article 20 protects persons and, after the Forty-fourth Amendment, cannot be included in an Article 359 enforcement order.
- **C:** Incorrect: double jeopardy requires the constitutional prosecution-and-punishment conditions for the same offence.
- **D:** Incorrect: Kathi Kalu Oghad distinguishes physical identifying material from compelled testimonial communication.

Examiner trap: The repeated-proceeding distractor omits the conjunctive words 'prosecuted and punished'.

Q18. Which situation most directly attracts Article 20(3)?

A. A lawfully obtained fingerprint sample from a person not accused of an offence
B. Compelling an accused to communicate personal knowledge that is incriminating and testimonial
C. A beneficial retrospective reduction of punishment
D. A departmental inquiry after an acquittal where no second criminal prosecution occurs

Answer: B.

- **A:** Incorrect: physical identifying evidence is not by itself compelled testimonial self-incrimination, and the accused-status gate is also absent.
- **B:** Correct: Article 20(3) requires accused status, compulsion and testimonial communication exposing the person against self.
- **C:** Incorrect: Article 20(1) does not bar a beneficial retrospective penal change.
- **D:** Incorrect: a departmental inquiry is not automatically a second prosecution and punishment for Article 20(2).

Examiner trap: Test all three gates—accused, compulsion and testimonial character—rather than focusing only on incrimination.

Q19. Which sequence best describes Article 21's doctrinal evolution?

A. Puttaswamy → A.K. Gopalan → Maneka Gandhi
B. Maneka Gandhi → R.C. Cooper → A.K. Gopalan
C. A.K. Gopalan's siloed procedure → R.C. Cooper's effects approach → Maneka Gandhi's fair, just and reasonable procedure
D. Golaknath → Indra Sawhney → Minerva Mills

Answer: C.

- **A:** Incorrect: the dates and doctrinal direction are reversed; privacy is a later application of the expanded liberty framework.
- **B:** Incorrect: Maneka completed rather than preceded the Cooper-led weakening of the silo theory.
- **C:** Correct: this is the standard chronological bridge from narrow legality to interlocking fairness review.
- **D:** Incorrect: those cases address amendment, reservation and Part III-IV harmony rather than the Article 21 procedure arc.

Examiner trap: The case names are familiar; only their chronological mechanism identifies the right answer.

Q20. Which statement most accurately states privacy and intimate-autonomy doctrine?

A. Puttaswamy made every privacy claim absolute.
B. Navtej Singh Johar judicially created a Fundamental Right to same-sex marriage.
C. Supriyo held that the Special Marriage Act must be rewritten by courts to recognise every union.
D. Puttaswamy requires legality, legitimate aim, proportionality and safeguards; Navtej protects consensual adult same-sex intimacy, while Supriyo did not judicially create same-sex marriage and its review was dismissed in 2025.

Answer: D.

- **A:** Incorrect: privacy is fundamental but qualified through a structured justification test.
- **B:** Incorrect: Navtej read down criminalisation of consensual adult intimacy; it did not decide a marriage-status entitlement.
- **C:** Incorrect: the Constitution Bench declined to judicially reconstruct the Special Marriage Act in that manner.
- **D:** Correct: the option keeps settled privacy and intimacy holdings separate from the marriage-equality boundary and later review status.

Examiner trap: Privacy, intimacy and civil status overlap factually but are not the same judicial holding.

Q21. Which Article 21A proposition is correct?

A. It guarantees free and compulsory education for children aged six to fourteen, implemented through the RTE framework with a distinct Article 30 minority-institution boundary. B. It covers every person from birth through university. C. It repealed Article 45 and Article 51A(k). D. Pramati required the RTE obligation to override minority educational autonomy in all cases.

Answer: A.

- **A:** Correct: the age band, statutory implementation and minority-institution qualification state the constitutional design precisely.
- **B:** Incorrect: Article 21A is textually limited to children aged six to fourteen.
- **C:** Incorrect: the Eighty-sixth Amendment recast Article 45 and inserted the parental duty in Article 51A(k); it did not repeal both.
- **D:** Incorrect: Pramati protected minority institutions from an application that would violate Article 30.

Examiner trap: The most common error expands the age band and then forgets the Article 30 boundary.

Q22. Which statement correctly distinguishes ordinary arrest from preventive detention?

A. Every preventive detainee has the Article 22(1) lawyer and 24-hour production guarantees. B. Ordinary arrest carries clauses (1)-(2) safeguards; preventive detention follows clauses (4)-(7), and the operative no-Advisory-Board ceiling remains three months. C. The Forty-fourth Amendment's proposed two-month period is already the operative constitutional text. D. Preventive detention is punishment after conviction for completed conduct.

Answer: B.

- **A:** Incorrect: Article 22(3) excludes preventive detention from the ordinary clauses (1)-(2), though other constitutional and statutory safeguards remain.
- **B:** Correct: the option separates the two branches and states the current uncommenced-amendment trap accurately.
- **C:** Incorrect: the two-month substitution has not been brought into force.
- **D:** Incorrect: preventive detention addresses anticipated harmful conduct, unlike punitive detention following adjudication.

Examiner trap: Do not transfer safeguards or time limits from one Article 22 branch into the other.

Q23. Which proposition about Articles 23 and 24 is correct?

A. Both Articles operate only against the State. B. Article 23 covers only trafficking across an international border. C. Article 23 reaches trafficking, begar and similar forced labour by public or private actors; Article 24 bars children below fourteen from factory, mine and hazardous employment. D. Article 24's constitutional wording is identical to every later statutory child-labour prohibition and exception.

Answer: C.

- **A:** Incorrect: both guarantees have horizontal reach against private exploitation.
- **B:** Incorrect: Article 23 covers trafficking and forced-labour practices without an international-border requirement.
- **C:** Correct: the option states the constitutional reach, beneficiary and distinct child-labour rule.
- **D:** Incorrect: later statutes regulate a wider and more detailed field; their categories must not be substituted for Article 24's text.

Examiner trap: The constitutional and statutory child-labour rules are related but not textually coextensive.

Q24. Which statement correctly compares Articles 25 and 26?

A. Article 25 protects denominations only, while Article 26 protects every individual's conscience. B. Both rights are absolute once a claimant labels conduct religious. C. Article 25(2) prevents all social-reform legislation. D. Article 25 protects individual conscience and profession, practice and propagation; Article 26 protects denominational affairs, both within stated limits and secular-regulation boundaries.

Answer: D.

- **A:** Incorrect: the option reverses the primary beneficiaries of the two provisions.
- **B:** Incorrect: public order, morality, health and other constitutional controls remain relevant.
- **C:** Incorrect: Article 25(2) expressly preserves secular regulation and social-reform measures.
- **D:** Correct: the comparison identifies claimant, protected activity and the constitutional qualification structure.

Examiner trap: Individual and denominational rights overlap but cannot be swapped.

Q25. Which statement about Articles 27 and 28 is correct?

A. Article 27 bars a specifically appropriated religion-promoting tax, while Article 28 distinguishes wholly State-maintained, trust-administered and aided or recognised institutions. B. Article 27 prohibits every regulatory fee connected with any religious institution. C. Article 28 forbids academic study about religion in every educational institution. D. Article 28 permits compulsory religious instruction in every aided institution without consent.

Answer: A.

- **A:** Correct: the option preserves the fiscal-purpose test and all three institutional categories in Article 28.
- **B:** Incorrect: tax purpose and appropriation must be distinguished from a regulatory fee or neutral general levy.
- **C:** Incorrect: objective education about religions is not automatically the religious instruction prohibited by the clause.
- **D:** Incorrect: Article 28(3) protects against compelled attendance without the required consent in covered institutions.

Examiner trap: Tax versus fee and instruction versus academic study are separate close-option distinctions.

Q26. What is the most defensible use of the Essential Religious Practices doctrine?

A. Any long-standing practice is automatically essential and immune. B. Use essentiality as a threshold within a text-first inquiry, then apply explicit limits, competing rights, reform power and proportionality with institutional caution. C. Courts must decide theology without examining public order, equality or harm. D. The doctrine has been formally deleted from all religious-freedom cases.

Answer: B.

- **A:** Incorrect: antiquity alone does not establish theological essentiality or constitutional immunity.
- **B:** Correct: this formulation captures both the doctrine's separating function and the criticism that judges may become theologians.
- **C:** Incorrect: Articles 25-26 expressly require analysis of constitutional limits and regulatory fields.
- **D:** Incorrect: ERP remains part of doctrine, though its role and method are contested.

Examiner trap: The qualified answer neither canonises nor invents the abolition of ERP.

Q27. Which statement about Articles 29 and 30 is accurate?

A. Article 29 is available only to minorities and Article 30 to all cultural groups. B. Article 30 prevents every academic or administrative regulation. C. Article 29 protects specified interests of sections of citizens and admission non-discrimination; Article 30 protects religious and linguistic minority institutions, generally assessed State-wise. D. Article 29(2) permits denial of aided-institution admission solely on language.

Answer: C.

- **A:** Incorrect: Article 29 is not minority-exclusive, while Article 30 specifically addresses religious and linguistic minorities.

- **B:** Incorrect: minority autonomy does not include maladministration; regulations preserving excellence may survive if they do not destroy identity.
- **C:** Correct: the option states beneficiary wording, distinct functions and the T.M.A. Pai minority-unit rule.
- **D:** Incorrect: Article 29(2) expressly prohibits covered admission denial only on religion, race, caste or language.

Examiner trap: The Articles are adjacent, but their beneficiary words and protected interests are not interchangeable.

Q28. Which proposition correctly compares Articles 32 and 226?

A. Article 32 enforces every legal right, while Article 226 is confined to Fundamental Rights. B. Article 226 is unavailable against a non-State body performing a public duty. C. Article 32 is only a discretionary statutory appeal. D. Article 32 is itself a Fundamental Right for Part III enforcement; Article 226 is wider in subject matter and may reach public duties beyond Article 12 State status.

Answer: D.

- **A:** Incorrect: the scopes are reversed; Article 32 requires a Fundamental-Rights claim, while Article 226 extends to other legal rights.
- **B:** Incorrect: public-duty reach is a defining reason Article 226 can extend beyond the Article 12 classification.
- **C:** Incorrect: Article 32 is a constitutional Fundamental Right and original remedial jurisdiction, not a statutory appeal.
- **D:** Correct: the option preserves guaranteed access, wider High Court scope and the distinct public-duty inquiry.

Examiner trap: Guaranteed status and wider subject-matter scope belong to different Articles.

Q29. A tribunal is about to decide a matter outside its jurisdiction. Which writ and timing fit best?

A. Prohibition, because it prevents threatened jurisdictional excess before the proceeding is completed. B. Certiorari, because it always operates prospectively before any order. C. Quo warranto, because every tribunal holds a public office unlawfully. D. Habeas corpus, because any jurisdictional error is a detention.

Answer: A.

- **A:** Correct: prohibition is the preventive writ directed at an inferior court or tribunal acting beyond jurisdiction.
- **B:** Incorrect: certiorari ordinarily quashes a completed defective order rather than stopping the pending excess.
- **C:** Incorrect: quo warranto tests legal authority to occupy a substantive public office, not ordinary tribunal jurisdiction.
- **D:** Incorrect: habeas corpus addresses unlawful detention, not every adjudicatory error.

Examiner trap: Prohibition and certiorari are separated chiefly by the stage and remedial function.

Q30. Which statement correctly combines Articles 31A-31C and Article 300A?

A. Ninth Schedule insertion creates absolute immunity from all judicial review. B. Article 31A protects specified reform fields; post-24 April 1973 Ninth Schedule insertions face basic-structure review; original Article 31C is limited to genuine Article 39(b)-(c) laws; property now rests in Article 300A. C. Article 31C gives every Directive Principle automatic priority over all Fundamental Rights. D. Article 300A is a citizen-only Fundamental Right enforceable solely through Article 32.

Answer: B.

- **A:** Incorrect: Waman Rao and I.R. Coelho preserve review of later insertions for basic-structure damage.
- **B:** Correct: the option distinguishes the three saving mechanisms and the post-Forty-fourth property location.
- **C:** Incorrect: Minerva Mills invalidated the extension of Article 31C protection to all Directive Principles.
- **D:** Incorrect: Article 300A protects persons as a constitutional right outside Part III and does not create an automatic Article 32 route.

Examiner trap: A single word-absolute-usually signals the false Ninth Schedule option.

Q31. Which proposition about Articles 33-35 and martial law is correct?

A. Article 33 directly authorises every commander to cancel any right without law. B. Martial law and National Emergency are identical expressions for the same proclamation. C. Parliament may tailor rights for specified forces or services under Article 33; Article 34 concerns indemnity where martial law existed; Article 35 reserves listed Part III legislation to Parliament. D. Article 34 automatically suspends habeas corpus throughout India.

Answer: C.

- **A:** Incorrect: Article 33 allocates the restriction or abrogation power to Parliament for constitutionally specified purposes and personnel.
- **B:** Incorrect: martial law is an undefined local exceptional condition, while National Emergency is an express constitutional regime.
- **C:** Correct: the option accurately separates discipline, indemnity and exclusive legislative competence.
- **D:** Incorrect: Article 34 does not create a nationwide automatic habeas-corpus suspension.

Examiner trap: Each of Articles 33, 34 and 35 answers a different question: personnel, indemnity and law-maker.

Q32. Which statement accurately distinguishes Articles 358 and 359 after the Forty-fourth Amendment?

A. Both automatically suspend every Fundamental Right during any Emergency. B. Article 359 deletes the text of every right named in a Presidential order. C. Article 358 applies to internal-disturbance Emergency and Article 359 may include Articles 20 and 21. D. Article 358 automatically affects Article 19 only in war or external-aggression Emergency within its conditions; Article 359 requires a Presidential order suspending specified enforcement and can never include Articles 20 or 21.

Answer: D.

- **A:** Incorrect: the provisions differ in trigger, right, mechanism and effect; neither erases the entire Part III catalogue automatically.
- **B:** Incorrect: Article 359 suspends the right to move court for specified enforcement during the order; it does not repeal the right's text.
- **C:** Incorrect: the Forty-fourth Amendment narrowed Article 358 to external Emergency and insulated Articles 20-21 from Article 359.
- **D:** Correct: the option states the automatic narrow mechanism and the separate order-based enforcement mechanism precisely.

Examiner trap: The exam hinge is automatic Article 19 displacement versus order-based enforcement suspension.

PYQS AND ANSWER PRACTICE

Audited PYQ ownership and key discipline

| Type | Count | Answer-key treatment |

|---|---|---

| Direct/routed Mains PYQs | 6 | Exact question wording with full demand-specific model answers |

| Direct/routed objective PYQs | 15 | 2024 Q76 uses the held final local-official key; the other 14 letters are withheld |

| Total audited PYQs | 21 | No adjacent question is promoted as a direct owner |

Direct/routed Mains PYQs

Mains PYQ 1. UPSC 2019 GS-II Q5 - What can France learn from the Indian Constitution's approach to secularism? (10 marks, 150 words)

Model answer. Thesis: France can learn from India that secularism in a deeply plural society may require principled engagement with religion rather than only a strict public-private wall. **Constitutional design:** Articles 25-26 protect individual conscience and denominational autonomy, while Articles 27-28 restrain religious taxation and instruction. Yet Article 25(2) allows regulation of secular activity and social reform; Article 17 abolishes untouchability. **Analysis:** This creates three lessons for French laïcité. First, equal citizenship need not erase public religious identity. Second, accommodation - such as denomination-sensitive autonomy - can coexist with public order, health, morality and equality. Third, the State may intervene asymmetrically where reform is needed, while maintaining equal concern for all faiths. *S.R. Bommai* treats secularism as a basic feature, and *Shirur Mutt* distinguishes protected religious affairs from regulable secular administration. **Qualification:** India's model also risks selective intervention and judicial theology through the ERP test; France cannot transplant it without its own constitutional history. **Conclusion:** The transferable lesson is not State religiosity, but context-sensitive neutrality: protect conscience, regulate harm and preserve equal citizenship.

Why this earns marks: It answers "what can learn," uses Articles 17 and 25-28 plus *Bommai* and *Shirur Mutt*, compares institutional logics, states a limitation and gives a graded conclusion.

How to improve this answer: In the final 30 seconds, add a two-column France/India contrast and name Article 25(2) as the reform lever; this prevents the answer from becoming a generic defence of Indian secularism.

Mains PYQ 2. UPSC 2021 GS-II Q13 - Analyze the distinguishing features of the notion of Right to Equality in the Constitutions of the USA and India. (15 marks, 250 words)

Model answer. Thesis: Both Constitutions reject arbitrary hierarchy, but India constitutionalises a broader, group-conscious equality code while the US model centres on the Fourteenth Amendment's Equal Protection Clause.

Text and structure: Article 14 combines British **equality before law** with American **equal protection of laws**. India then adds Articles 15-16 on prohibited grounds and public opportunity, Article 17's abolition of untouchability, and Article 18's abolition of titles. The US Constitution has no direct equivalent of this five-Article code.

Substantive equality: India expressly authorises special provisions for women/children, SEBCs, SCs/STs and EWS under Articles 15(3)-(6), and service reservation under Article 16(4)-(6). In the US, affirmative action developed judicially/statutorily under a text that does not expressly authorise group reservations; judicial review uses tiered scrutiny.

Judicial tests: Indian courts use intelligible differentia plus rational nexus, and since *E.P. Royappa* (1973) and *Maneka Gandhi* (1978), anti-arbitrariness. *Indra Sawhney* (1992) adds creamy-layer and ordinary ceiling discipline; *Janhit Abhiyan* (2022) upheld EWS by majority. US doctrine differentiates strict, intermediate and rational-basis scrutiny.

Enforcement and social context: Article 32 itself is a Fundamental Right; Article 17 directly reaches private caste practice. US equal-protection duties generally require State action, though civil-rights statutes regulate private discrimination.

Qualification: Neither system is purely formal or purely group-blind; both have contested affirmative-action histories.

Conclusion: India's distinctive feature is an explicit anti-hierarchy and protective-discrimination Constitution, whereas US equality grows from a general clause through judicial tiers.

Why this earns marks: It compares text, beneficiaries, affirmative action, judicial tests, private reach and remedies rather than merely listing provisions; it uses named doctrine and avoids caricaturing either system.

How to improve this answer: Add one concrete US authority or contemporary affirmative-action reference and compress the Indian reservation detail into a comparison table so every paragraph remains explicitly comparative.

Mains PYQ 3. UPSC 2022 GS-II Q2 - "Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute." Comment. (10 marks, 150 words)

Model answer. Thesis: Articles 19(1)(d) and 19(1)(e) make internal mobility and settlement core incidents of common citizenship, but Article 19(5) expressly subjects both to reasonable restrictions.

Scope: The freedoms belong only to citizens and operate against State restriction. They promote national integration, labour mobility and personal choice. Travel abroad, however, is protected under Article 21 after *Maneka Gandhi* (1978), not Article 19(1)(d).

Limits: Article 19(5) permits restrictions in the interests of the general public or for protection of Scheduled Tribes. Constitutionally supportable illustrations include carefully drawn protected-area/tribal-land regimes, public-health quarantine and proportionate public-order restrictions. A restriction still requires valid law, rational connection, necessity and non-arbitrariness under Articles 14 and 19.

Qualification: "General public interest" is not an executive blank cheque; excessive duration, geographic breadth or discriminatory implementation can fail reasonableness.

Conclusion: Movement and residence are presumptive freedoms within a single Union, while Article 19(5) preserves proportionate protection of vulnerable communities and genuine public interests.

Why this earns marks: It names both freedoms and the exact Article 19(5) grounds, distinguishes foreign travel, applies proportionality and ends with a qualified comment.

How to improve this answer: Draw the Article 19(1)(d)/(e) -> Article 19(5) restriction chain and use one tribal-protection illustration; do not spend scarce words on unrelated migration policy.

Mains PYQ 4. UPSC 2023 GS-II Q11 - "The Constitution of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society." Illustrate with special reference to the expanding horizons of the right to life and personal liberty. (15 marks, 250 words)

Model answer. Thesis: Article 21 demonstrates constitutional dynamism: an apparently procedural guarantee has become a dignity-based charter without textual replacement.

Doctrinal arc: *A.K. Gopalan* (1950) read "procedure established by law" narrowly and treated rights as silos. *R.C. Cooper* (1970) shifted attention to the effect of State action. *Maneka Gandhi* (1978) then required procedure to be fair, just and reasonable and linked Articles 14, 19 and 21.

Expanding horizons: *Francis Coralie Mullin* made dignity central; *Hussainara Khatoon* recognised speedy trial; *M.H. Hoskot* and Article 39A support free legal aid; *Olga Tellis* protected livelihood through fair procedure; *D.K. Basu* constitutionalised arrest safeguards and compensation; environmental cases linked clean air/water to life. *K.S. Puttaswamy* (2017) unanimously protected bodily, decisional and informational privacy. *Navtej Singh Johar* applied dignity, privacy and equality to intimate autonomy.

Progressive constitutionalism: These holdings allow old text to answer new problems - surveillance, data processing, custodial power and reproductive choice. The later insertion of Article 21A shows that interpretation and amendment can complement each other.

Qualification: Expansion must retain administrable standards. *Olga Tellis*, for example, did not create immunity from eviction; recognition of livelihood required fair procedure. Courts should secure a rights floor without converting every policy aspiration into an unlimited entitlement.

Conclusion: Article 21 is "living" because stable text is repeatedly applied through dignity, fairness and proportionality to changing forms of power.

Why this earns marks: It directly illustrates dynamism through a chronological case arc, uses more than six named holdings, explains what each proves and includes an institutional limitation.

How to improve this answer: Use a four-step timeline-*A.K. Gopalan* (1950), *Cooper*, *Maneka Gandhi* (1978), *K.S. Puttaswamy* (2017)-then attach only one modern application to each step; this improves chronology and stays within 250 words.

Mains PYQ 5. UPSC 2023 GS-II Q12 - Explain the constitutional perspectives of Gender Justice with the help of relevant Constitutional Provisions and case laws. (15 marks, 250 words)

Model answer. Thesis: The Constitution moves gender justice from formal non-discrimination to substantive equality, dignity, autonomy and institutional protection.

Equality: Articles 14 and 16 guarantee equality and public opportunity; Article 15(1) bars discrimination only on sex, while Article 15(3) authorises special provisions for women and children. This permits corrective measures rather than requiring gender blindness.

Freedom and dignity: Articles 19(1)(a)/(g) and 21 protect voice, work, bodily integrity, reproductive choice and decisional autonomy. Article 23 attacks trafficking; Article 39(d), 42 and 51A(e) strengthen equal pay, humane work/maternity relief and rejection of practices derogatory to women's dignity.

Cases: *Vishaka (1997) v. State of Rajasthan* converted Articles 14, 19(1)(g) and 21 plus CEDAW into binding workplace-harassment safeguards until legislation. *Anuj Garg* rejected paternalistic exclusion from employment. *Joseph Shine* invalidated adultery law that treated women as marital property. *Secretary, Ministry of Defence v. Babita Puniya* rejected stereotypes in permanent commission. *Suchita Srivastava* linked reproductive choice to liberty; *Shayara Bano* used equality/manifest arbitrariness against instant triple talaq.

Qualification: Protective law can itself become paternalistic; the test is whether it expands agency or fixes women into dependency. Social justice delivery and representation remain uneven despite constitutional doctrine.

Conclusion: Gender justice requires the State to remove direct discrimination, dismantle structural stereotypes and protect equal autonomy in public and private life.

Why this earns marks: It integrates Fundamental Rights, DPSPs/duty and six targeted cases, distinguishes protection from paternalism and preserves the Social Justice implementation cross-link.

How to improve this answer: Organise the body as equality, autonomy, work and protection, and add one implementation gap such as unpaid care or workplace enforcement to satisfy the constitutional "perspectives" demand.

Mains PYQ 6. UPSC 2024 GS-II Q12 - Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to D.N.A. testing of child in the womb to establish its paternity. (15 marks, 250 words)

Model answer. Thesis: Privacy is a constitutionally protected sphere of bodily integrity, decisional autonomy and personal information, but a lawful, necessary and proportionate intrusion may be justified for a compelling adjudicatory need.

Constitutional basis: *K.S. Puttaswamy (2017)*, a nine-judge decision, held privacy intrinsic to Article 21 and Part III. Interference requires law, legitimate aim, proportionality and safeguards. Pregnancy and DNA sampling engage the woman's bodily integrity, the child's identity/dignity and family privacy; they cannot be treated as ordinary documentary discovery.

Paternity framework: Bharatiya Sakshya Adhiniyam, 2023 section 116 continues the conclusive presumption that a child born during a valid marriage, or within 280 days after dissolution while the mother remains unmarried, is legitimate unless non-access is proved. The presumption protects status and social dignity. Courts have therefore required a strong prima facie foundation or eminent need before DNA testing, considered less intrusive evidence, and prioritised the child's welfare. *Bhabani Prasad Jena* cautioned against routine tests; *Nandlal Wasudeo Badwaik* shows that reliable DNA evidence can become decisive where testing is lawfully justified.

Qualification: Truth-seeking is legitimate, but compulsion must not become a roving inquiry. Refusal may have evidentiary consequences only within fair procedure; it does not automatically erase bodily autonomy or the statutory presumption.

Conclusion: Privacy does not create absolute immunity from DNA evidence; it converts the judicial question into one of legality, necessity, child-centred proportionality and safeguards.

Why this earns marks: It answers both halves, updates the evidence-law section, uses *K.S. Puttaswamy (2017)* plus paternity authorities, applies the four-part privacy test and gives a precise qualified conclusion.

How to improve this answer: State BSA section 116 and the non-access exception in a separate legal-rule sentence, then apply necessity, less-intrusive alternatives and child welfare to the prenatal facts in that order.

Direct/routed objective PYQs

Prelims PYQ 1. UPSC 2018 GS-I Q92 - Privacy

Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which of the following in the Constitution of India correctly and appropriately imply the above statement?

- A. Article 14 and the provisions under the Amendment to the Constitution
- B. Article 17 and the Directive Principles of State Policy in Part IV
- C. Article 21 and the freedoms guaranteed in Part III
- D. Article 24 and the provisions under the 44th Amendment to the Constitution

Answer withheld pending official UPSC key.

Explanation: *K.S. Puttaswamy (2017)* states that privacy is intrinsic to Article 21 and forms part of the freedoms guaranteed by Part III. Article 14 contributes equality review, but option A's amendment formulation is not the holding.

Prelims PYQ 2. UPSC 2019 GS-I Q56 - Right to marry

Which Article of the Constitution of India safeguards one's right to marry the person of one's choice?

- A. Article 19
- B. Article 21
- C. Article 25
- D. Article 29

Answer withheld pending official UPSC key.

Explanation: Adult choice in marriage is protected through life, liberty, dignity and autonomy under Article 21, illustrated by *Lata Singh* and *Shafin Jahan*.

Prelims PYQ 3. UPSC 2019 GS-I Q85 - Liberty

In the context of polity, which one of the following would you accept as the most appropriate definition of liberty?

- A. Protection against the tyranny of political rulers
- B. Absence of restraint
- C. Opportunity to do whatever one likes
- D. Opportunity to develop oneself fully

Answer withheld pending official UPSC key.

Explanation: Constitutional liberty is not mere absence of restraint or licence; it creates the protected sphere in which personality and capacity can develop consistently with others' equal freedom.

Prelims PYQ 4. UPSC 2020 GS-I Q4 - Untouchability

Which one of the following categories of Fundamental Rights incorporates protection against untouchability as a form of discrimination?

- A. Right against Exploitation
- B. Right to Freedom
- C. Right to Constitutional Remedies
- D. Right to Equality

Answer withheld pending official UPSC key.

Explanation: Article 17 lies within Articles 14-18, the Right to Equality. Article 23, not Article 17, addresses begar (forced unpaid labour) and forced labour.

Prelims PYQ 5. UPSC 2021 GS-I Q79 - Privacy Article

'Right to Privacy' is protected under which Article of the Constitution of India?

- A. Article 15
- B. Article 19
- C. Article 21
- D. Article 29

Answer withheld pending official UPSC key.

Explanation: Privacy is intrinsic to Article 21 and Part III. Some privacy applications also engage Article 19, but the requested Article is 21.

Prelims PYQ 6. UPSC 2021 GS-I Q82 - Judicial custody

With reference to India, consider the following statements:

1. Judicial custody means an accused is in the custody of the concerned magistrate and such accused is locked up in police station, not in jail.
2. During judicial custody, the police officer in charge of the case is not allowed to interrogate the suspect without the approval of the court.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Explanation: Judicial custody ordinarily places the accused in jail under judicial authority, not a police station, so statement 1 is false. Police interrogation during judicial custody requires court permission, making statement 2 correct.

Prelims PYQ 7. UPSC 2021 GS-I Q83 - Parole

With reference to India, consider the following statements:

1. When a prisoner makes out a sufficient case, parole cannot be denied because it becomes a matter of right.
2. State Governments have their own Prisoners Release on Parole Rules.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Explanation: Parole is ordinarily discretionary and governed by applicable prison/parole rules; it is not an automatic Fundamental Right. Prisons are a State subject and States maintain their own rule frameworks.

Prelims PYQ 8. UPSC 2021 GS-I Q85 - Unguided discretion

A legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates which one of the following Articles?

- A. Article 14
- B. Article 28
- C. Article 32
- D. Article 44

Answer withheld pending official UPSC key.

Explanation: Uncanalised discretion is arbitrary and violates Article 14's equality/non-arbitrariness guarantee.

Prelims PYQ 9. UPSC 2021 GS-I Q92 - Right to Property

What is the position of the Right to Property in India?

- A. Legal right available to citizens only
- B. Legal right available to any person
- C. Fundamental Right available to citizens only
- D. Neither Fundamental Right nor legal right

Answer withheld pending official UPSC key.

Explanation: Article 300A protects "no person," so it is not citizen-only. The technically fuller description is a constitutional right, not a Fundamental Right; among the options, B is correct.

Prelims PYQ 10. UPSC 2021 GS-I Q96 - Bharat Ratna and Padma Awards

Consider the following statements:

1. Bharat Ratna and Padma Awards are titles under Article 18(1).
2. Padma Awards, instituted in 1954, were suspended only once.
3. The number of Bharat Ratna Awards is restricted to a maximum of five in a particular year.

Which of the above statements are not correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

Answer withheld pending official UPSC key.

Explanation: National awards are not prohibited titles (*Balaji Raghavan*); Padma awards were suspended in more than one period; and Bharat Ratna regulations do not set a five-per-year maximum (the conventional annual cap is three). All three statements are incorrect.

Prelims PYQ 11. UPSC 2022 GS-I Q18 - Mandamus and Quo Warranto

With reference to the writs issued by the Courts in India, consider the following statements:

1. Mandamus will not lie against a private organisation unless it is entrusted with a public duty.
2. Mandamus will not lie against a Company even though it may be a Government Company.
3. Any public-minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto.

Which of the statements given above are correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

Answer withheld pending official UPSC key.

Explanation: Mandamus can reach a private body entrusted with public duty and can reach a government company where public duty exists, so statement 2 is false. Quo warranto uses relaxed standing because it protects the public character of an office.

Prelims PYQ 12. UPSC 2023 GS-I Q31 - Due Process

In essence, what does 'Due Process of Law' mean?

- A. The principle of natural justice
- B. The procedure established by law
- C. Fair application of law
- D. Equality before law

Answer withheld pending official UPSC key.

Explanation: Due process in essence requires fair hearing, impartiality and non-arbitrary procedure - the principles of natural justice. Option C is close but less doctrinally precise; *Maneka Gandhi (1978)* reads fairness into Article 21's procedure-established formulation.

Prelims PYQ 13. UPSC 2023 GS-I Q40 - Reservation and efficiency

Consider the following statements:

Statement I: The Supreme Court has held in some judgments that reservation policies made under Article 16(4) would be limited by Article 335 for maintenance of efficiency of administration.

Statement II: Article 335 defines the term 'efficiency of administration'.

Which one of the following is correct?

- A. Both are correct and II correctly explains I
- B. Both are correct but II does not explain I
- C. I is correct but II is incorrect
- D. I is incorrect but II is correct

Answer withheld pending official UPSC key.

Explanation: Article 335 supplies the efficiency consideration but does not define "efficiency of administration." The Court has used it in reservation doctrine, so I is true and II false.

Prelims PYQ 14. UPSC 2024 GS-I Q76 - Right to Privacy

Under which of the following Articles of the Constitution of India has the Supreme Court placed the Right to Privacy?

- A. Article 15
- B. Article 16
- C. Article 19
- D. Article 21

OFFICIAL LOCAL UPSC KEY VERIFIED: D.

Explanation: The local official Set-A key records Q76 as D. *K.S. Puttaswamy (2017)* placed privacy intrinsically within Article 21 and Part III.

Prelims PYQ 15. UPSC 2026 GS-I Q54 - Article 13 and custom

'X' was addressing a seminar on the meaning of the term 'law' under Article 13. X explained that law included ordinances, orders, rules and regulations, but was not convinced that custom or usage having the force of law was included. 'Y' maintained that such custom or usage was included. Select the correct conclusion:

- A. X is correct, including on non-inclusion of custom
- B. Y's view that law includes custom is incorrect
- C. The views of both X and Y are correct
- D. Only Y's view is correct

Answer withheld pending official UPSC key.

Explanation: Article 13(3)(a) expressly includes custom or usage having in India the force of law. X's examples are correct, but X's rejection of custom is wrong; Y alone is correct. The local Set-A provisional key records Q54 as D.

Six original Mains questions with complete model solutions

Original Q1 - Article 13 makes judicial review practical through a family of doctrines. Discuss severability, eclipse and waiver. (10 marks, 150 words)

Model answer. Thesis: Article 13 invalidates law "to the extent" of inconsistency, allowing courts to protect rights without mechanically erasing an entire legal order.

Severability: If the offending provision can be removed and the remainder remains workable and legislatively intended, only the invalid portion falls. This gives operational meaning to "to the extent of."

Eclipse: Under *Bhikaji Narain Dhakras*, a pre-Constitution law inconsistent with a Fundamental Right lies dormant against that right rather than becoming dead for every purpose; it may revive if the constitutional shadow is removed. The classic rule does not automatically revive a post-Constitution law void under Article 13(2).

No waiver: *Bhikaji Nath* and *Olga Tellis* reject individual surrender or estoppel as a means to validate unconstitutional State action. Fundamental Rights are public limits on power, not merely private benefits.

Qualification: Constitutional amendments follow the Article 368/basic-structure route after Article 13(4) and *Kesavananda Bharati* (1973).

Conclusion: The doctrines combine rights supremacy with legal continuity and calibrated remedies.

Why this earns marks: It defines all three doctrines, distinguishes pre/post-Constitution law, explains rationale and links amendment review without drifting into the whole basic-structure chapter.

How to improve this answer: Add a compact pre-Constitution/post-Constitution comparison for eclipse and state that severability turns on legislative intent and workability; these are the two most likely examiner discriminators.

Original Q2 - Preventive detention is a constitutional anomaly within the Right to Freedom. Examine. (10 marks, 150 words)

Model answer. Thesis: Article 22 simultaneously constitutionalises detention without trial and attempts to civilise it through minimum procedural safeguards.

Anomaly: Preventive detention responds to anticipated conduct, unlike punitive detention after adjudication. Article 22(3) excludes preventive detainees from the ordinary clauses requiring counsel and magistrate production within 24 hours. This sits uneasily with *Maneka Gandhi* (1978)'s fair-procedure principle and Article 21 liberty.

Safeguards: Articles 22(4)-(7) cap detention without Advisory Board approval at the presently operative three months; require communication of grounds as soon as may be; and provide the earliest opportunity to represent, while allowing public-interest withholding. Parliament and States legislate within their distribution-of-power fields.

Implementation concern: vague grounds, delayed communication and repetitive detention orders can make review formal rather than effective.

Qualification: The Forty-fourth Amendment's proposed two-month substitution was never commenced, so asserting two months as current law is wrong.

Conclusion: Preventive detention remains constitutionally valid but legitimate only as an exceptional, narrowly construed and rigorously reviewed power.

Why this earns marks: It answers "anomaly," contrasts punitive/preventive detention, names exact safeguards and the unenforced amendment trap, and offers a constitutionally grounded verdict.

How to improve this answer: Use a punitive-versus-preventive detention table and explicitly separate Article 22(1)-(2) from 22(4)-(7); reserve the final line for the uncommenced two-month trap.

Original Q3 - India's reservation jurisprudence seeks substantive equality but is controlled by evidence, limits and administrative efficiency. Analyse. (15 marks, 250 words)

Model answer. Thesis: Reservation is a constitutional technique of equal opportunity, not a departure from equality; its legitimacy depends on identifying disadvantage and under-representation without converting enabling power into unreviewable allocation.

Constitutional basis: Articles 15(4)-(6) authorise educational/special provisions for SEBCs, SCs/STs and EWS; Articles 16(4), 16(4A), 16(4B) and 16(6) address appointment, promotion/backlog and EWS. Article 335 adds the efficiency consideration.

Judicial controls: *Indra Sawhney (1992)* upheld OBC reservation, required creamy-layer exclusion, set the ordinary 50 per cent ceiling and excluded promotion from Article 16(4). The 77th, 81st, 82nd and 85th Amendments rebuilt promotion/backlog tools. *M. Nagaraj (2006)* required data on inadequate representation and attention to efficiency; *Jarnail Singh (2018)* removed the need to re-prove SC/ST backwardness but retained inadequacy/efficiency discipline.

New dimensions: *Janhit Abhiyan (2022)* upheld the 103rd Amendment's EWS design by majority. *Davinder Singh (2024)* permitted evidence-based SC sub-classification to reach the most disadvantaged, without allowing States to alter Article 341 lists or mandating sub-quotas.

Assessment: Data prevents political assertion from replacing constitutional need; creamy layer guards capture; Article 335 requires capable administration. Yet "efficiency" cannot mean preserving historically exclusionary institutions.

Conclusion: Reservation serves substantive equality when targeted, evidence-based, reviewable and combined with education/training rather than treated as either permanent patronage or an anti-merit exception.

Why this earns marks: It follows claim -> provisions -> amendment/case evidence -> what each controls -> qualification, includes 2024 law and gives a balanced understanding of efficiency.

How to improve this answer: Add a clause map of Articles 15(4)-(6) and 16(4), (4A), (4B), (6), then connect each case to one control-creamy layer, ceiling, data, efficiency or sub-classification.

Original Q4 - India's freedom of speech is protected through a structured test, not an absolute slogan. Discuss with special reference to digital speech and political information. (15 marks, 250 words)

Model answer. Thesis: Article 19(1)(a) presumptively protects expression, press circulation and democratic information, while Article 19(2) allows only eight enumerated, reasonable and law-based grounds.

Historical settlement: *Romesh Thappar* and *Brij Bhushan* invalidated circulation/pre-censorship restraints under the original text. The First Amendment added public order, friendly relations and incitement, but also inserted "reasonable"; the Sixteenth Amendment later added sovereignty and integrity.

Doctrinal test: *Kedar Nath Singh (1962)* saved old IPC section 124A only by confining it to incitement to violence/public disorder. *Shreya Singhal (2015)* struck section 66A for vagueness, overbreadth and chilling effect, protected discussion/advocacy short of incitement, upheld section 69A and read down section 79.

Digital process: *Anuradha Bhasin (2020)* protected speech/trade through the internet and required published orders, proportionality, periodic review and no indefinite suspension; it did not create a standalone internet right.

Political information: *Association for Democratic Reforms (2024)* invalidated Electoral Bond secrecy because voters need political-funding information under Article 19(1)(a), linking transparency with political equality.

Current criminal law: BNS section 152 is a differently drafted successor focused on secession, rebellion, subversion and sovereignty; calling it a mere renaming obscures the new constitutional inquiry.

Conclusion: Speech protection succeeds when grounds remain closed and State process is precise, published, proportionate and reviewable.

Why this earns marks: It uses the historical sequence, exact doctrinal holdings, digital procedure, electoral transparency and current BNS control, while correcting two common overstatements.

How to improve this answer: Quote the eight Article 19(2) grounds as a closed list in a margin box and explicitly distinguish the old section 124A interim position from the live Section 152 challenge.

Original Q5 - Religious freedom in India combines protection, regulation and reform. Critically examine the Essential Religious Practices doctrine within this model. (20 marks, 250 words)

Model answer. Thesis: Articles 25-26 create neither a theocratic privilege nor a strict separation wall; they protect conscience and denominational affairs while allowing public-order limits, secular regulation and social reform. ERP is the judiciary's contested device for drawing that boundary.

Constitutional design: Article 25 protects all persons, subject to public order, morality, health, other Fundamental Rights and Article 25(2) regulation/reform. Article 26 protects denominations in religious affairs but permits lawful regulation of property administration. Articles 27-28 restrain religious taxation and instruction.

ERP origin and use: *Shirur Mutt* distinguished religious matters from secular activities and referred essentiality to religious doctrines. The doctrine prevents every associated activity from claiming immunity. *Durgah Committee* introduced a narrower judicial filter; later cases often asked courts to determine theological centrality. In *Sabarimala* (2018), the majority rejected the exclusion practice through denomination, equality and constitutional-morality reasoning.

Defence: ERP preserves a protected religious core while enabling reform and preventing commercial/administrative practices from escaping law.

Criticism: Secular judges may become theologians; essentiality can freeze religion, privilege texts over lived practice and avoid the more transparent question of harm/proportionality.

Better approach: First classify individual/denominational claims and religious/secular activity; then apply explicit text, competing rights, harm, reform authority and proportionality. Essentiality should not substitute for the Constitution's express limits.

Conclusion: ERP is useful as a threshold but constitutionally legitimate only when disciplined by equality, dignity and institutional humility.

Why this earns marks: It covers all four religion Articles, origin/evolution/application, defence and criticism, and proposes a text-first test rather than a slogan.

How to improve this answer: Add a three-column ERP defence/criticism/replacement-test table and avoid stating the Sabarimala review proceedings as finally settled beyond the 2018 majority holding.

Original Q6 - Part III reconciles rights with social revolution and constitutional emergency, but not without tension. Evaluate with reference to Articles 31A-31C, 33-35 and 358-359. (20 marks, 250 words)

Model answer. Thesis: The Constitution protects individual freedom while preserving defined space for redistribution, disciplined services and emergency action; legitimacy depends on narrow text, judicial review and a non-derogable core.

Social-revolution clauses: Article 31A saves specified reform categories from Article 14/19 attack. Article 31B and the Ninth Schedule protect listed laws, but *I.R. Coelho* (2007) subjects post-24 April 1973 insertions to basic-structure review. Article 31C protects genuine implementation of Article 39(b)/(c). *Property Owners Association* (2024) confirmed its survival while rejecting the claim that every private asset is automatically a material resource.

Institutional discipline: Article 33 lets Parliament restrict rights of armed/public-order/intelligence forces for discipline. Article 34 permits parliamentary indemnity connected with martial law; Article 35 reserves specified Part III legislation to Parliament. These are competence and necessity clauses, not rights-free zones.

Emergency: Article 358 automatically displaces Article 19 constraints only during war/external-aggression Emergency and within post-44th conditions. Article 359 requires a Presidential order suspending court enforcement of specified rights. Articles 20 and 21 cannot be included.

Tensions: Saving clauses can shield coercive redistribution; discipline can suppress dissent; emergency power can normalise exceptional rule. The answers are relation-to-purpose, recital, temporality, proportionality and basic-structure review.

Conclusion: Part III reconciles transformation and necessity not by trusting the State, but by enumerating exceptional powers and keeping their boundaries judicially enforceable.

Why this earns marks: It integrates every requested Article family, uses *I.R. Coelho (2007)* and *Property Owners Association (2024)*, distinguishes martial law/Emergency and gives a mechanism-based evaluation.

How to improve this answer: Use three mini-headings-redistribution, disciplined services, Emergency-and end each with its review control; explicitly state that Article 359 suspends enforcement, not the right text itself.